

Table of Statutes referred to in this Act.

Short Title	Session and Chapter
Midwives Act, 1902	2 Edw. 7. c. 17.
Midwives (Scotland) Act, 1915	5 & 6 Geo. 5. c. 91.
Midwives Act, 1918	8 & 9 Geo. 5. c. 43.
Midwives (Ireland) Act, 1918	7 & 8 Geo. 5. c. 59.
Government of Ireland Act, 1920	10 & 11 Geo. 5. c. 67.
Midwives Act, 1926	17 & 18 Geo. 5. c. 17.
Midwives (Scotland) Act, 1927	17 & 18 Geo. 5. c. 17.
Nursing Homes Registration Act, 1927	17 & 18 Geo. 5. c. 38.
Midwives Act, 1936	26 Geo. 5. & 1 Edw. 8. c. 40.
Public Health Act, 1936	26 Geo. 5. & 1 Edw. 8. c. 49.
Public Health (London) Act, 1936	26 Geo. 5. & 1 Edw. 8. c. 50.
Maternity Services (Scotland) Act, 1937	1 Edw. 8. & 1 Geo. 6. c. 30.
Acquisition of Land (Authorisation Procedure) Act, 1946	9 & 10 Geo. 6. c. 49.
National Health Service Act, 1946	9 & 10 Geo. 6. c. 81.
National Health Service (Scotland) Act, 1947	10 & 11 Geo. 6. c. 27.
Acquisition of Land (Authorisation Procedure) (Scotland) Act, 1947	10 & 11 Geo. 6. c. 42.
Local Government Act, 1948	11 & 12 Geo. 6. c. 26.

CHAPTER 14

International Organisations (Immunities and Privileges) Act, 1950

ARRANGEMENT OF SECTIONS

Section

1. Immunities, privileges and capacities of certain international organisations and persons connected therewith.
2. Publication of lists of persons entitled to immunities and privileges under preceding section.
3. Immunities and privileges of judges of, and suitors to, the International Court of Justice.
4. Diplomatic immunities of representatives attending international conferences.
5. Reciprocal treatment.
6. Orders in Council.
7. Repeal and savings.
8. Short title.

SCHEDULE.—Immunities and Privileges.

An Act to consolidate the Diplomatic Privileges
(Extension) Acts, 1944 to 1950. [12th July 1950.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) This section shall apply to any organisation declared by Order in Council to be an organisation of which the United Kingdom or His Majesty's Government therein and one or more foreign sovereign Powers or the government or governments thereof are members.

Immunities,
privileges and
capacities
of certain
international
organisations
and persons
connected
therewith.

(2) His Majesty may by Order in Council—

(a) provide that any organisation to which this section applies (hereinafter referred to as "the organisation") shall, to such extent as may be specified in the Order, have the immunities and privileges set out in Part I of the Schedule to this Act, and shall also have the legal capacities of a body corporate;

(b) confer upon—

(i) any persons who are representatives (whether of governments or not) on any organ of the organisation or are members of any committee of the organisation or of an organ thereof;

(ii) such number of officers of the organisation as may be specified in the Order, being the holders of such high offices in the organisation as may be so specified; and

(iii) such persons employed on missions on behalf of the organisation as may be so specified;

to such extent as may be specified in the Order, the immunities and privileges set out in Part II of the Schedule to this Act;

(c) confer upon such other classes of officers and servants of the organisation as may be specified in the Order, to such extent as may be so specified, the immunities and privileges set out in Part III of the Schedule to this Act;

and Part IV of the Schedule to this Act shall have effect for the purpose of extending to the staffs of such representatives and members as are mentioned in sub-paragraph (i) of paragraph (b) of this subsection and to the families of officers of the organisation any immunities and privileges conferred on the representatives,

members or officers under that paragraph, except in so far as the operation of the said Part IV is excluded by the Order conferring the immunities and privileges:

Provided that the Order in Council shall be so framed as to secure that there are not conferred on any person any immunities or privileges greater in extent than those which, at the time of the making of the Order, are required to be conferred on that person in order to give effect to any international agreement in that behalf and that no immunity or privilege is conferred upon any person as the representative of His Majesty's Government in the United Kingdom or as a member of the staff of such a representative.

Publication
of lists of
persons
entitled to
immunities
and privileges
under
preceding
section.

2.—(1) Where immunities and privileges are conferred on any persons by an Order in Council made under subsection (2) of the foregoing section, the Secretary of State—

(a) shall compile a list of the persons entitled to immunities and privileges conferred under paragraph (b) of that subsection, and may compile a list of the persons entitled to immunities and privileges conferred under paragraph (c) of that subsection;

(b) shall cause any list compiled under this subsection to be published in the London, Edinburgh and Belfast Gazettes; and

(c) whenever any person ceases or begins to be entitled to the immunities and privileges to which any such list relates, shall amend the list and cause a notice of the amendment or, if he thinks fit, an amended list, to be published as aforesaid.

(2) Every list or notice published under the foregoing subsection shall state the date from which the list or amendment takes or took effect; and the fact that any person is or was included or not included at any time among the persons entitled to the immunities and privileges in question may, if a list of those persons has been so published, be conclusively proved by producing the Gazette containing the list or, as the case may be, the last list taking effect before that time, together with the Gazettes (if any) containing notices of the amendments taking effect before that time, and by showing that the name of that person is or was at that time included or not included in the said list.

Immunities
and privileges
of judges of,
and suitors
to, the
International
Court of
Justice.

3.—(1) His Majesty may, by Order in Council, confer on the judges and registrars of the International Court, and on suitors to that Court and their agents, counsel and advocates, such immunities, privileges and facilities as may be required to give effect to any resolution of, or convention approved by, the General Assembly of the United Nations.

(2) In this section the expression "the International Court" means the International Court of Justice set up under the Charter of the United Nations.

4.—(1) Where a conference is held in the United Kingdom and is attended by the representatives of His Majesty's Government in the United Kingdom and the government or governments of one or more foreign sovereign Powers, and it appears to the Secretary of State that doubts may arise as to the extent to which the representatives of such foreign Powers and members of their official staffs are entitled to diplomatic immunities, he may—

Diplomatic
immunities of
representatives
attending
international
conferences.

- (a) compile a list of the persons aforesaid who are entitled to such immunities, and cause that list to be published in the London, Edinburgh, and Belfast Gazettes; and
- (b) whenever it appears to the Secretary of State that any person ceases or begins to be entitled to such immunities, amend the list and cause a notice of the amendment or, if he thinks fit, an amended list, to be published as aforesaid;

and every representative of a foreign Power who is for the time being included in the list shall, for the purpose of any enactment and rule of law or custom relating to the immunities of an envoy of a foreign Power credited to His Majesty, and of the retinue of such an envoy, be treated as if he were such an envoy, and such of the members of his official staff as are for the time being included in the list shall be treated for the purpose aforesaid as if they were his retinue.

(2) Every list or notice published under the foregoing subsection in relation to any conference shall include a statement of the date from which the list or amendment takes or took effect; and the fact that any person is or was included or not included at any time among the persons entitled to diplomatic immunities as representatives attending the conference or as members of the official staff of any such representative may, if a list of those persons has been so published, be conclusively proved by producing the Gazette containing the list or, as the case may be, the last list taking effect before that time, together with the Gazettes (if any) containing notices of the amendments taking effect before that time, and by showing that the name of that person is or was at that time included or not included in the said list.

5. Nothing in the foregoing provisions of this Act shall be construed as precluding His Majesty from declining to accord immunities or privileges to, or from withdrawing immunities or privileges from, nationals or representatives of any Power on the ground that that Power is failing to accord corresponding immunities or privileges to British nationals or representatives.

Orders in
Council.

6.—(1) A draft of any Order in Council proposed to be made under this Act shall be laid before Parliament and the draft shall not be submitted to His Majesty except in pursuance of an address presented by each House of Parliament praying that the Order be made.

(2) Any power conferred by this Act to make an Order in Council shall be construed as including a power to revoke or vary the Order in Council by a subsequent Order in Council made in accordance with the foregoing subsection.

Repeal and
savings.

7.—(1) The Diplomatic Privileges (Extension) Acts, 1944 to 1950, are hereby repealed.

(2) Nothing in this Act shall affect any Order in Council made, list or notice published or condition prescribed under an enactment repealed by this Act, but any such Order in Council, list, notice or condition shall, if in force at the commencement of this Act, continue in force and, so far as it could have been made, published or prescribed under this Act, have effect as if so made, published or prescribed.

(3) Any document referring to an enactment repealed by this Act shall be construed as referring to the corresponding provision of this Act.

52 & 53 Vict.
c. 63.

(4) The mention of particular matters in this section shall not be taken as prejudicing the operation of section thirty-eight of the Interpretation Act, 1889, with regard to the effect of repeals.

Short title.

8. This Act may be cited as the International Organisations (Immunities and Privileges) Act, 1950.

Section 1.

SCHEDULE

IMMUNITIES AND PRIVILEGES

PART I

Immunities and privileges of the organisation

1. Immunity from suit and legal process.
2. The like inviolability of official archives and premises occupied as offices as is accorded in respect of the official archives and premises of an envoy of a foreign sovereign Power accredited to His Majesty.
3. The like exemption or relief from taxes and rates, other than taxes on the importation of goods, as is accorded to a foreign sovereign Power.
4. Exemption from taxes on the importation of goods directly imported by the organisation for its official use in the United Kingdom or for exportation, or on the importation of any publications of the

organisation directly imported by it, such exemption to be subject to compliance with such conditions as the Commissioners of Customs and Excise may prescribe for the protection of the Revenue.

5. Exemption from prohibitions and restrictions on importation or exportation in the case of goods directly imported or exported by the organisation for its official use and in the case of any publications of the organisation directly imported or exported by it.

6. The right to avail itself, for telegraphic communications sent by it and containing only matter intended for publication by the press or for broadcasting (including communications addressed to or despatched from places outside the United Kingdom), of any reduced rates applicable for the corresponding service in the case of press telegrams.

PART II

Immunities and privileges of representatives, members of committees, high officers and persons on missions

7. The like immunity from suit and legal process as is accorded to an envoy of a foreign sovereign Power accredited to His Majesty.

8. The like inviolability of residence as is accorded to such an envoy.

9. The like exemption or relief from taxes as is accorded to such an envoy.

PART III

Immunities and privileges of other officers and servants

10. Immunity from suit and legal process in respect of things done or omitted to be done in the course of the performance of official duties.

11. Exemption from income tax in respect of emoluments received as an officer or servant of the organisation.

PART IV

Immunities and privileges of official staffs and of high officers' families

12. Where any person is entitled to any such immunities and privileges as are mentioned in Part II of this Schedule as a representative on any organ of the organisation or a member of any committee of the organisation or of an organ thereof, his official staff accompanying him as such a representative or member shall also be entitled to those immunities and privileges to the same extent as the retinue of an envoy of a foreign sovereign Power accredited to His Majesty is entitled to the immunities and privileges accorded to the envoy.

13. Where any person is entitled to any such immunities and privileges as are mentioned in Part II of this Schedule as an officer of the organisation, that person's wife or husband and children under the age of twenty-one shall also be entitled to those immunities and privileges to the same extent as the wife or husband and children of an envoy of a foreign sovereign Power accredited to His Majesty are entitled to the immunities and privileges accorded to the envoy.
